Dileep Kumar And 6 Others vs State Of U.P. And Another on 23 August, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:145625

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Court No. - 75

Case :- APPLICATION U/S 528 BNSS No. - 31210 of 2025

Applicant :- Dileep Kumar And 6 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Rajesh Kumar,Satyam Mishra

Counsel for Opposite Party :- G.A.

Hon'ble Vikas Budhwar,J.

1. Heard Sri Rajesh Kumar along with Sri Satyam Mishra, learned counsel for the applicants and Sri Vikas Sharma, learned State Law Officer for the State.

2. This is an application under Section 528 of BNSS preferred by the applicants for quashing the entire proceeding of Case No.2 of 2023 (Sanjo Devi Vs. Dileep Kumar and others), under Section 12 of Domestic Violence Act, Police Station- Bilhaur, District-Kanpur Nagar, pending in the Court of learned Village Court Bilhaur, Kanpur Dehat.

3. The case of the applicant is that a complaint stood lodged by O.P. No.2/wife against the applicants, who happen to be husband, mother-in-law, jeth, jethani and Nanad with an allegation

that the marriage of O.P. No.2 stood solemnized with applicant no.1 on 28.02.2013 and in the marriage, expenditure worth Rs.5,00,000/- were incurred and with the wedlock of O.P. No.2 and applicant no.1, two children were born. Submission is that the applicants were not happy with the gifts so offered in the marriage, as their demand was much more high and expectation was for a four-wheeler and on account of non-fulfillment of the said expectation and desire, the O.P. No.2 alleges that she has been assaulted and on 19.08.2019, she was thrown out from her matrimonial house and she stayed in the house of her parents and from 02.07.2023, she is staying in a rented house and she she is not being provided any support and she has been subjected to domestic violence. Allegation is that even FIR bearing number "207 of 2023, under Sections 498-A, 323, 504, 506 IPC read with Section 3/4 of D.P. has been lodged and further there happens to be proceedings under Section 125 of the CrPC being Case No.792 of 2019, Sanju Devi vs. Dilip Kumar, which came to be allowed on 04.12.2020 according interim maintenance to the tune of Rs.30,000/- per month. Post-lodging of the complaint, the notices have been issued. Learned counsel for the applicants has submitted that the applicants have been falsely implicated, they have not committed any act or omission so as to invoke the provisions contained under the D.V. Act. There has been no extension of domestic violence, as the O.P. No.2 has not been subjected to domestic violence. Further submission is that there is no domestic relationship between the applicants and O.P. no.2 under Section 2(f) and further there is no shared household under Section 2(s) and the present proceeding is nothing but the grossest misuse of process of law and already, FIR stood lodged, pursuant whereto matter was referred for mediation, however, the O.P. No.2 did not turn up in mediation after taking the money so deposited and the mediation failed. Learned counsel for the applicants submits that it is highly improbable and inconceivable that post-birth of two children, demand of dowry would be raised and also extension of domestic violence.

4. Learned A.G.A. on the other hand has submitted that a perusal of the complaint makes the case triable and further no orders under Chapter IV of the Domestic Violence Act, 2005 had been passed and in case, any orders had been passed, it is always subject to challenge under the remedies available under the Act.

5. I have heard the submissions so raised across the Bar and perused the records carefully.

6. In the present case, at the instance of the applicants, challenge has been raised to the maintainability of the complaint as well as the order issuing notice. Apparently, no orders have been passed under Chapter IV of the Act. Thus in these circumstances, what is required to be seen is whether on the face of the allegations, the proceedings can go on or not. For the said purpose, the relationship of the parties is important. Apparently, the O.P. No.2 claims herself to be the wife of applicant no.1, who further claims that she had been subjected to domestic violence, thus she comes within the definition of aggrieved person under Section 2(a). The allegation is against the applicants, who are the defendants in the complaint regarding extension of domestic violence and subjection of the same upon the O.P. No.2, thus they come within the definition of respondents under Section 2(q). Next comes the domestic relationship. The domestic relationship, which as per Section 2(f) means a relationship of two persons, who live or had at any point of time been lived together in a shared-household. Importantly, the words employed "two persons who live or had lived any point of time" mark significance, particularly when it is not mandatory that on the date of the lodging of the

complaint, the two parties are living together, as at any point of time they had lived together and the aggrieved person was subjected to domestic violence, then the same comes within the definition of domestic relationship. As regards shared-household is concerned, here the word employed 'at any stage' also marks significance, that even if domestic violence had been committed in a shared-household at any point of time and the allegations are there, then the case is liable to be proceeded with.

7. Looking into the allegations contained in the complaint, prima facie, it cannot be said that the case is not liable to be proceeded, as this Court at this stage is not required to delve into merits of the allegations, as they are subject matter of proceeding. As regards the submissions of the learned counsel for the applicants that already the applicants are facing the wrath of tentacles of the FIR is concerned, the same is subject matter of defence which can be raised when the proceedings are allowed to continue. Moreover, the question with regard to payment of Rs.30,000/- as maintenance pursuant to the orders passed under Section 125 of CrPC is concerned, they cannot be a ground to forestall the present proceeding. Moreover, no order under Chapter IV has been passed and once the orders are passed, then it is always open for the applicants to challenge the same by way of an appeal under Section 29 of the Act or while preferring proceedings under Section 25 of the Act. The Hon'ble Apex Court had the occasion to consideration the extent of judicial intervention in the proceedings where complaint has been subject matter of challenge under Section 12 of the D.V. Act in Saurabh Kumar Tripathi vs. Vidhi Rawal, Criminal Appeal No.2688 of 2025 decided on 19.05.2025, wherein in paragraphs-35 and 39, it has been observed as under: -

> "35. When it comes to exercise of power under Section 402 of the CrPC in relation to application under Section 12(1), the High Court has to keep in mind the fact that the DV Act, 2005 is a welfare legislation specially enacted to give justice to those women who suffer from domestic violence and for preventing acts of domestic violence. Therefore, while exercising jurisdiction under Section 482 of the CrPC for quashing proceedings under Section 12(1), the High Court should be very slow and circumspect. Interference can be made only when the case is clearly of gross illegality or gross abuse of the process of law. Generally, the High Court must adopt a hands-off approach while dealing with proceedings under Section 482 for quashing an application under Section 12(1). Unless the High Courts show restraint in the exercise of jurisdiction under Section 482 of the CrPC while dealing with a prayer for quashing the proceedings under the DV Act, 2005, the very object of enacting the DV Act, 2005, will be defeated.
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> 39. To conclude, the view taken in the impugned order of the High Court that a petition under Section 482 of the CrPC for challenging the proceedings emanating from Section 12(1) of the DV Act, 2005 is not maintainable, is not the correct view. We hold that High Courts can exercise power under Section 482 of CrPC (Section 528 of the BNSS) for quashing the proceedings emanating from the application under Section 12(1) of the DV Act, 2005, pending before the Court of the learned

> Magistrate. However, considering the object of the DV Act, 2005, the High Courts should exercise caution and circumspection when dealing with an application under Section 12(1). Normally, interference under Section 482 is warranted only in the case of gross illegality or injustice."

8. Looking into the facts and circumstances of the case, this Court does not find the present case to be an exceptional category for interference.

9. Accordingly, interference is declined. The application is disposed of leaving it open to the applicants to contest the trial before the court below while taking all the legal and factual grounds and this Court has no reason to disbelieve that the court below shall consider the same in correct perspective.

Order Date :- 23.8.2025 N.S.Rathour (Vikas Budhwar, J)